

HOUSE No. 4379

The Commonwealth of Massachusetts

PRESENTED BY:

Natalie M. Blais and Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the charter of the city of Greenfield.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>7/1/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>7/1/2025</i>

HOUSE No. 4379

By Representative Blais of Deerfield and Senator Comerford, a joint petition (accompanied by bill, House, No. 4379) of Natalie M. Blais and Joanne M. Comerford (with the approval of the mayor and city council) for legislation to authorize the city of Greenfield to amend its charter. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the charter of the city of Greenfield.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2-10 of article 2 of the charter of the city of Greenfield, which is on
2 file in the office of the archivist of the commonwealth as provided in section 12 of chapter 43B
3 of the General Laws, is hereby amended by striking out subsection (c) and inserting in place
4 thereof the following subsection:

5 (c) If the Council meets within the 30 days and fails to reject as provided by this Section,
6 those unrejected appointments shall be considered affirmed by the Council, the 35-day
7 presumptive approval process considered satisfied, and those appointees will thereby be allowed
8 to be immediately administered the oath of office without having to wait for the 35-day period to
9 expire.

10 SECTION 2. Section 3-8 of article 3 of said charter is hereby amended by striking out
11 subsection (a) and inserting in place thereof the following subsection:-

12 (a) Acting Mayor. The Mayor shall, by a letter filed with the City Council and a copy
13 filed with the City Clerk, designate a qualified City officer or City employee to exercise the
14 powers and perform the duties of the office during the temporary absence of the Mayor for
15 periods of less than fifteen (15) business days and to serve only when the needs of the City
16 require and only to the extent necessary under the then circumstances.

17 Whenever, by reason of sickness, absence from the City or other cause, the Mayor shall
18 be unable to perform the duties of the office for a period of fifteen (15) successive business days,
19 or more, the president of the City Council shall be the acting Mayor. In the event of the absence
20 or disability of the President of the City Council, the Vice-president of the City Council shall
21 serve as acting Mayor; and the Mayor's qualified City officer or City employee designee shall
22 assist the acting Mayor in their duties of the office during the absence or disability of the Mayor.

23 SECTION 3. Article 5 of said charter is hereby amended by striking out section 5-3 and
24 inserting in place thereof the following section:-

25 SECTION 5-3: Submission of budget and budget message.

26 Not later than April 22 annually, the Mayor shall submit to the City Council a proposed
27 operating budget for the ensuing fiscal year with an accompanying budget message and
28 supporting documents. The Mayor shall simultaneously provide for the publication in a local
29 newspaper of a notice and a general summary of the proposed budget. The summary shall
30 specifically indicate any major variations from the current operating budget and the reason for
31 such changes. The notice shall further indicate the times and places at which complete copies of
32 the proposed operating budget for the City are available for examination by the public.

SECTION 4. Section 5-6 of said article of said charter is hereby amended by striking out subsection (c) and inserting in place thereof the following subsection:-

(c) Action by City Council. The City Council shall adopt the budget, with or without amendments, by June 30. In amending the budget, the City Council may increase or decrease amounts and expenditures as allowed under Section 32 of Chapter 44 of the General Laws. If the City Council fails to take any action with respect to any item in the proposed budget by June 30, such amount shall, without any action by the City Council, become a part of the appropriations for the ensuing fiscal year and shall be available for the purposes specified.

SECTION 5. Section 5-10 of said article of said charter is hereby amended by striking out subsection (a) and inserting in place thereof the following subsection:-

(a) The Mayor shall submit a capital improvement program to the City Council no later than March 1 annually. The capital improvement program shall be based on material prepared by the Capital Improvement Program Committee established by ordinance. [1]

It shall include:

1. A clear and concise general summary of its contents;
2. A list of all capital improvements proposed to be undertaken during the next ensuing five years, with supporting information as to the need for each capital improvement; cost estimates, methods of financing and recommended time schedules for each improvement; and,
3. The estimated annual cost of operating and maintaining each facility and piece of major equipment involved.

[1] Editor's Note: See Ch. 110, Capital Improvements Planning Committee.

SECTION 6. Section 6-11 of article 6 of said charter is hereby amended by striking out subsection (h) and inserting in place thereof the following subsection:-

(h) No member of the commission shall be an employee of the police department or fire department, nor shall any member of the commission member's family be an employee or retired member of the police or fire department within 36 months of the commission member's retirement date.

"Family member" shall mean parent, spouse, child, stepchild, grandchild, sibling, sibling-in-law, sibling's child and grandparent.

SECTION 7. Section 6-11 of said article of said charter is hereby amended by striking out subsection (e) and inserting in place thereof the following subsection:-

(e) The commission shall review written complaints made by the public concerning the operation and conduct of employees of both public safety departments.

All written complaints received shall be forwarded to the chief of the department to which they relate and the chief shall investigate or cause to be investigated said complaints and submit the chief's findings and recommendations, in connection therewith, that the chief deems appropriate.

The commission shall adopt such rules and regulations, consistent with this ordinance, the civil service statute and police and fire collective bargaining agreements, as it deems necessary to establish procedures to be followed in filing of written complaints by the public, investigating complaints and holding hearings concerning complaints made to it regarding the

74 operation of the police or fire department and the conduct and officers and employees of each
75 department. Citizen complaints shall be considered part of the employee's personnel file.

76 The commission shall apply the principle of progressive discipline, except in instances
77 where more severe punishment is warranted.